

in the Reconstruction Congress, the majority party split. Many balked at legislation which they regarded as establishing a general federal jurisdiction for the protection of person and property in the States.<sup>47</sup> Only after a com-

tive authorities by a consistent course of practice, "permanently and as a rule" refused to enforce its laws for the protection of some class of persons. *Id.*, at 334. See *id.*, at 416, 482, 505-506, 606-608, 697, App. 251-252, 315. But what was deemed the prerequisite to validity of congressional action in implementation of the Amendment under this theory was no less than a State's permitting "the rights of citizens to be systematically trampled upon without color of law," *id.*, at 375; "A systematic failure to make arrests, to put on trial, to convict, or to punish offenders." *Id.*, at 459. The National Government was thought powerless to intervene to regulate "A mere assault and battery, or arson, or murder . . . . The law is believed to be sufficient to cover such cases, and the officers of justice amply able to arrest and punish the offenders." *Id.*, at 457. See also Mr. Perry's assertion, *id.*, at App. 79, that the wrongs which Congress may remedy "are not injuries inflicted by mere individuals or upon ordinary rights of individuals," but injuries inflicted "under color of State authority or by conspiracies and unlawful combinations with at least the tacit acquiescence of the State authorities." Wrongs susceptible of adequate redress before the state courts evidently did not concern Congress, and Congress in 1871 did not attempt to reach those wrongs.

<sup>47</sup> General Garfield, *id.*, at App. 154: "In so far as this section punishes persons who under color of any State law shall deny or refuse to others the equal protection of the laws, I give it my cheerful support; but when we provide by congressional enactment to punish a mere violation of a State law, we pass the line of constitutional authority." (This objection is taken specifically to § 3 of the Act, authorizing federal executive intervention under certain circumstances.) See also, *e. g.*, *id.*, at App. 113-116: Mr. Farnsworth, who had no objection to § 1, now § 1979, vigorously opposed § 2 as extending to encompass individual action. Farnsworth regarded the Fourteenth Amendment as directed exclusively to the discriminations of state *legislation*, and his approval of § 1 indicates his understanding that it referred to conduct authorized by such legislation. Garfield seems to have agreed that § 1 did not reach even systematic maladministration of state law fair on its face. See *id.*, at App. 153.